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General Comment

With regard to America's ambitions with respect to the development of artificial intelligence technologies, it must be stated plainly in relation to training large language models (LLMs): Creators of works of literature, non-fiction texts, poetry, science, mathematics, video games, art, digital art, theater, film, music, and all other human-created works deserve fair compensation for their work.

If this fundamental expectation is broken, a risk exists that significant numbers of people will lose confidence in the potential for work to be an avenue to earn a living in the United States. That would change the very nature of what it means to be self-sufficient as an American.

Presently, it appears that LLMs are being trained on materials for which the creators have not been and, it appears to be proposed, will never be, appropriately compensated. This, quite obviously, constitutes theft of their work.

In the United States, life, liberty, and the pursuit of happiness have all long been entwined with individual effort in the form of one's work. As a non-socialist and non-communist country, the fruits of one's labor have been protected by the very ideas that underpin the American Dream.

The promise of artificial intelligence and the race to excel with tools backed by AI are both real. In the truest spirit of what it means to be the United States of America, technological advances and business excellence are admirable goals deserving great effort. However, they have never before required the broad theft or uncompensated appropriation of others' creative work.

These technical advances are defining challenges, worthy of best efforts which reveal true American ingenuity and exceptionality. This is an opportunity to show the world that America is, truly and at its core, the great nation it claims to be. Cheating, stealing, and harming others' livelihoods on the way to success is as un-American as can be.

Technologists and great business people supporting the United States' efforts on these axes can succeed on their own merits, without cheating or stealing. It is insulting to those technologists and business people to suggest otherwise, just as it is insulting to those who produced prior creative works to force them to accept those will be appropriated by others.

Ultimately, it is un-American to suggest that many Americans must be robbed in order for America's AI technologists to succeed. This is not the way America led the world for decades, even centuries. Starting now would do no less than to dissolve the American dream.

You will have heard from some on the AI community that AGI is on our doorstep and that it is imperative to be first in the race to the 'best' AI or the first AGI. It is all speculative, regardless of what advances have been made as larger and larger compute and data centers have been put to work on training new models. Recently, advances in small models have demonstrated that model size may not be a deciding factor in the overall AI race: keep in mind that there is no reason to believe in the winner-takes-all model, and that adoption is, ultimately, what will determine the winners. Adoption of smaller models with modest compromises on performance has more precedent in terms of likely path to 'winning.'

In terms of risk of a foreign nation getting ahead in the AI race: the adoption of technology involves many considerations. Top science labs, universities, and tech companies will catch up, if necessary. Those institutions and organizations won't trust AI from an unfriendly nation; nor will they sit back and declare themselves losers. Competition used to be welcomed by technologists, and will be again if they are not robbed of the opportunity by being encouraged to cheat! Their ingenuity will go into overdrive to succeed. Truly, insisting that any

form of cheating is required robs them of the opportunity to achieve greatness.

Ultimately, the inspiration to excel cannot come at the cost of widespread harm to others. That is not the American way and would be a disservice to both groups of Americans.